

19. 9:01 AM CASE NUMBER: C24-03254
CASE NAME: MAJERRIS WALKER VS. CITY OF PITTSBURG
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER VERIFIED RESPONSES TO FORM
INTERROGATORIES, SET ONE (NOS. 6.4, 6.5, 6.7)
FILED BY: CITY OF PITTSBURG
TENTATIVE RULING:

This case asserts claims arising out of alleged police brutality. Defendant City moves to compel fuller responses to several interrogatories concerning medical treatment and care.

Plaintiff correctly points out that the motion is defective for not including a Separate Statement, which would have been helpful to the Court. However, plaintiff for his part makes no effort to try to resist the motion one interrogatory/response at a time, and he doesn't seriously try to defend the adequacy of the existing responses. He mainly asks for an opportunity to amend the responses.

Well, okay. He can have such an opportunity, because the Court **grants** the motion to compel in its entirety. Plaintiff must provide full and complete responses to the interrogatories in question, with verifications, by July 10, 2026.

No sanctions are requested.

20. 9:00 AM CASE NUMBER: C23-02420
CASE NAME: RUTH LEVINSON VS. CYNTHIA HO
HEARING ON MOTION TO EXPUNGE LIS PENDENS
FILED BY: CYNTHIA HO
TENTATIVE RULING:

This case was dismissed in March. Still remaining in place, however, is a lis pendens. Defendant Ho moves to expunge it. The motion is unopposed, and it is **granted**.

21. 9:00 AM CASE NUMBER: C25-00957
CASE NAME: EBMUD v. CHANDLER
HEARING ON MOTION TO DISMISS AND FOR SANCTIONS
FILED BY: JOHN B. CHANDLER
TENTATIVE RULING:

Defendant John B. Chandler's "Motion to Dismiss Pursuant to CCP § 430.10 and to Hold [Plaintiff] EBMUD in Civil Contempt," deemed a motion for judgment on the pleadings, is **denied**. Defendant's request for civil contempt and attorney fees is likewise **denied**.

Background

EBMUD owns a recorded 1983 easement consisting of a 20-foot-wide strip of land running across private property behind 16 Roberts Court in Contra Costa County. The easement traverses San Ramon Creek, descending one steep hillside, crossing the creek bed, and climbing the hillside on the other